

Court No. - 37

Case :- WRIT - C No. - 31829 of 2017

Petitioner :- M/S U.S. Foods Private Limited And Another

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Sanjay Kumar Pandey

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

This is a fresh matter which was called out today but on account of the abstention of lawyers from work, we direct that this matter be placed as fresh whenever the Court resumes work.

Put up tomorrow i.e. on 25.07.2017.

Order Date :- 24.7.2017

Madhurima

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Respondent :- State Of U.P. And 3 Others

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Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

Heard learned counsel for the petitioner.

The present petition arises out of recovery proceedings of electricity dues. Learned counsel for the petitioner at the very outset submits that the petitioner is prepared to deposit the amount if some breathing time is given and installments are provided for.

The Electricity Supply Code, 2005 prescribes such a procedure in order to extend the facility of instalments in paragraph 6.14 which is extracted hereinunder:

"6.14 Installment Facility

(i) The Licensee may extend the facility of installments to those consumers only who are in financial distress. However, no waiver of surcharge shall be allowed.

3(4)[(ii) No officer below the rank of Executive Engineer shall grant installments. The Executive Engineer, / DGM / and General Manager can grant up to maximum of two, three or four monthly installments respectively. However first installment shall not be less than 40% of the total amount. Where the amount for installments exceeds Rs.10, 000/= (Ten Thousand), the consumer shall be asked to deposit post dated cheques of the installments to the Licensee.]"

We, therefore, provide that the petitioner shall approach the Executive Engineer concerned who shall on receipt of a certified copy of this order within 15 days, pass an appropriate order in relation to the request of the petitioner for fixing instalments.

Writ petition is disposed of with these directions.

Copy of this order be provided to the petitioner today itself.

Order Date :- 26.7.2017

Madhurima